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California lawmakers pass bills to address antisemitism, deem 'Jewish' an ethnicity, and protect religious observance

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California is poised to become the first state to deem "Jewish" an ethnic and racial identity, after lawmakers gave final approval to the groundbreaking legislation on Monday.

The SB 1387 bill, which would expand the definition of ethnicity "to include Jewish identity" in demographic data collection, will now head to the governor's desk. If the legislation becomes law, state agency forms that allow for voluntary disclosures of ethnicity or race would also need to offer a "Jewish" option.

Both the State Assembly and Senate granted final approval to the bill in the last few hours of California's 2026 legislative session, which concludes at the end of the day on Monday. Gov. Gavin Newsom, a Democrat, has until Sept. 30 to sign bills into laws or veto them.

The SB 1387 ethnicity legislation has been a priority among many California Jewish organizations, who argue that Jewish peoplehood should be connected to much more than just religion — and that the law should reflect that understanding.

This bill, which would take effect in 2030, would affect forms issued by agencies ranging from public schools to unemployment offices to prisons. Data collected would serve to inform research initiatives, identify disparities and guide policy decisions, while banning the disclosure of personal information, per the bill.

Joining SB 1387 in heading to the governor's desk are five other bills that are relevant to the state's 1.2 million Jews and that had the support of the Jewish California coalition.

On Sunday, the legislature passed AB 1853, a bill that bars threatening false and misleading information from California voter guides. Jewish California, which represents 43 organizations, praised the legislation's advancement, stressing that 54 Jewish groups voiced their support for the bill within 48 hours of its introduction.

"Hate speech does not belong in a state-approved document paid by tax dollars," David Bocarsly, CEO of Jewish California, said in a statement.

"AB 1853 boldly declares that our state's official election documents can't be used to spread conspiracy theories and bigotry," added Bocarsly, whose coalition was not only a sponsor of this bill but also of SB 1387.

Also on Sunday, lawmakers approved AB 2664, the Safe Worship Zone Act, which would create a 100-foot zone around the entrances of houses of worship, where no one would be able to come within 8 feet of a congregant without their consent.

The bill, which received the backing of a wide-ranging interfaith coalition, is modeled after Colorado's bubble zone law that offers patients protection around reproductive health clinics.

"The rise of antisemitism is undeniable, and our communities must be protected," Democratic Assemblymember Rebecca Bauer-Kahan, the bill's author, said in a statement.

"AB 2664 gives communities an important tool to push back against harassment and intimidation and protect the sanctity of our houses of worship," Bauer-Kahan added.

Meanwhile, on Thursday, the legislature approved AB 395, which would require government agencies, K-12 schools and public universities to avoid scheduling major events or meetings on days "that members of the public would be unable to participate or be present due to the ritual observance of a religious, cultural, or ancestral holiday."

Among the Jewish observances that would be codified on a list of such holidays are Rosh Hashanah, Yom Kippur and the first and last two days of Passover.

"For too long and in too many communities, religious minorities and other people of faith have been asked to make difficult choices on the days that matter most to them," Democratic Assemblymember Jesse Gabriel, the bill's author, said in a statement.

"This legislation would help to prevent that injustice and ensure that Californians of all backgrounds can fully participate, particularly when important decisions are being made," added Gabriel, who chairs the California Legislative Jewish Caucus.

Lawmakers on Thursday also approved another Gabriel bill, AB 1836, which seeks to close a gap in the current structure of the California State Nonprofit Security Grant Program. Because the program allocates security funds only for a nonprofit's physical building, off-site events like menorah lightings on Chanukah were not eligible.

A fifth bill relevant to the Jewish community, AB 1763, is also heading to Newsom's desk, after passing in the legislature last Tuesday. This bill would include religious holiday observance as a type of excused absence in schools, without requiring a written request from a parent or guardian.

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